# ARTICLE I: DEFINITIONS AND INTERPRETATION

## Section 1.1 Definitions

Capitalized terms used in this Agreement and not otherwise defined shall have the meanings set forth below:

- **"Affiliate"** means, with respect to any specified Person, any other Person that directly or indirectly controls, is controlled by, or is under common control with such specified Person. For purposes of this definition, "control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting securities, by contract, or otherwise.
- **"Agreement"** means this Limited Partnership Agreement, as it may be amended, supplemented, or restated from time to time in accordance with the terms hereof.
- **"Alternative Investment Vehicle"** or **"AIV"** means any limited partnership, limited liability company, or other legal entity formed by the General Partner to make one or more Portfolio Investments where the use of the Partnership would result in adverse tax, regulatory, or legal consequences for the Partnership or any Partner.
- **"Bankruptcy"** means, with respect to any Person, the filing of a petition for relief as a debtor under any bankruptcy, insolvency, or similar law, the appointment of a receiver or trustee for such Person’s assets, or the making of a general assignment for the benefit of creditors.
- **"Capital Commitment"** means, with respect to any Partner, the total amount of capital that such Partner has agreed to contribute to the Partnership, as set forth opposite such Partner’s name on Schedule A attached hereto, as amended from time to time.
- **"Capital Contribution"** means, with respect to any Partner, the total amount of cash actually contributed to the Partnership by such Partner pursuant to a Capital Call.
- **"Capital Call"** or **"Drawdown Notice"** means a written notice issued by the General Partner to the Limited Partners requiring them to contribute all or a portion of their unfunded Capital Commitments to the Partnership.
- **"Carried Interest"** means the share of the Partnership's profits allocated and distributed to the General Partner as performance incentive, equal to twenty percent (20%) of the net cumulative profits of the Partnership, subject to the Preferred Return and the Waterfall provisions set forth in Article IV.
- **"Clawback Amount"** means the amount of Carried Interest that the General Partner is legally obligated to return to the Partnership at the liquidation or termination of the Fund to ensure that the General Partner has not received more than twenty percent (20%) of the Fund’s cumulative net profits.
- **"Closing Date"** means the Initial Closing Date or any subsequent date on which any additional Limited Partner is admitted to the Partnership, up to the Final Closing Date.
- **"Code"** means the United States Internal Revenue Code of 1986, as amended from time to time.
- **"Co-Investment"** means an investment made alongside the Partnership by a Limited Partner or a third-party investor in a specific Portfolio Company.

- **"Defaulting Partner"** means any Limited Partner who fails to fund any portion of its required Capital Contribution within ten (10) Business Days following the delivery of a Capital Call notice.
- **"Delaware Act"** means the Delaware Revised Uniform Limited Partnership Act, 6 Del. C. Section 17-101, et seq., as amended from time to time.
- **"Distributable Cash"** means all cash receipts of the Partnership derived from Portfolio Investments (including dividends, interest, and divestment proceeds), less cash utilized to pay Partnership Expenses or reserved for anticipated liabilities.
- **"Escrow Account"** means a segregated, interest-bearing account established by the General Partner into which a portion (e.g., thirty percent (30%)) of all Carried Interest distributions shall be deposited to secure the General Partner's potential Clawback obligations.
- **"Final Closing Date"** means the date occurring no later than twelve (12) months after the Initial Closing Date, after which no further Capital Commitments from new Limited Partners will be accepted by the Partnership.
- **"Fiscal Year"** means the period from January 1 to December 31 of each calendar year.
- **"Fund"** or **"Partnership"** means the venture capital fund formed under and governed by this Agreement.
- **"General Partner"** or **"GP"** means [Insert General Partner Entity Name, e.g., Apex Capital GP, LLC], a Delaware limited liability company, in its capacity as the general partner of the Partnership, or any successor general partner appointed in accordance with this Agreement.
- **"Indemnified Person"** means the General Partner, the Management Company, their respective Affiliates, officers, directors, shareholders, employees, and members of the LPAC.
- **"Initial Closing Date"** means the date on which the first Capital Commitments are formally accepted and this Agreement is executed by the initial Partners.
- **"Investment Period"** means the period beginning on the Initial Closing Date and ending on the fifth (5th) anniversary thereof, or upon the earlier termination or suspension of the Investment Period in accordance with the terms of this Agreement.
- **"Key Person Event"** means the occurrence of a situation where at least [two (2)] of the designated Key Persons ([Insert Name 1], [Insert Name 2]) cease to devote substantially all of their business time and attention to the affairs of the Partnership and the Management Company.
- **"Limited Partner"** or **"LP"** means any Person admitted to the Partnership as a limited partner whose name is set forth on Schedule A, in its capacity as a limited partner.
- **"LPAC"** means the Limited Partners Advisory Committee established pursuant to Article VII.
- **"Management Company"** means [Insert Management Company Name, e.g., Apex Venture Management, LLC], or any Affiliate thereof appointed to provide investment management and administrative services to the Partnership.
- **"Management Fee"** means the annual fee paid to the Management Company as compensation for managing the Partnership, calculated as two percent (2.0%) per annum of the aggregate Capital Commitments during the Investment Period, and subsequently reduced as provided in Article V.
- **"Organizational Expenses Cap"** means the maximum amount of legal, administrative, and regulatory costs incurred in connection with the formation of the Partnership that may be borne by the Partnership, which shall not exceed [Insert Amount, e.g., $100,000] in the aggregate.

- **"Partner"** means the General Partner or any Limited Partner.
- **"Partnership Expenses"** means all costs, fees, and expenses incurred by the Partnership that are not explicitly designated as obligations of the General Partner or the Management Company, as detailed in Article V.
- **"Person"** means any natural person, partnership, corporation, limited liability company, trust, estate, or other legal entity.
- **"Portfolio Company"** means any company or entity in which the Partnership holds a direct or indirect equity, debt, or warrant investment.
- **"Portfolio Investment"** means any investment made by the Partnership in a Portfolio Company.
- **"Preferred Return"** or **"Hurdle Rate"** means an annual rate of return equal to eight percent (8.0%), compounded annually, calculated on the cumulative Capital Contributions of a Limited Partner from the date each contribution was made until the date it is repaid.
- **"Removal for Cause"** means the removal of the General Partner upon a Supermajority Vote of the Limited Partners following a final judicial determination that the General Partner has committed fraud, willful misconduct, gross negligence, or a material breach of this Agreement.
- **"Supermajority Vote"** means the affirmative vote or written consent of Limited Partners holding at least seventy-five percent (75%) of the total Capital Commitments held by all non-defaulting Limited Partners.
- **"Whole-of-Fund Waterfall"** means the method of allocating distributions set forth in Section 4.1, whereby all Distributable Cash is allocated to the Limited Partners until they have received an amount equal to 100% of their aggregate drawn Capital Contributions plus their accrued Preferred Return, before any Carried Interest is distributed to the General Partner.

## Section 1.2 Interpretation

Unless the context of this Agreement otherwise requires:

1. Words using the singular or plural number also include the plural or singular number, respectively.
2. The terms "hereof," "herein," "hereunder," and derivative or similar words refer to this entire Agreement.
3. The word "including" means "including without limitation."
4. References to Articles, Sections, and Schedules are references to the Articles, Sections, and Schedules of this Agreement.
5. Headings and captions are inserted for convenience of reference only and shall not affect the interpretation or construction of any provision hereof.

# ARTICLE II: FORMATION, CLOSING AND TERM

## Section 2.1 Formation of the Partnership

The Partners hereby agree to form and constitute a limited partnership pursuant to the provisions of the Delaware Revised Uniform Limited Partnership Act (the "Delaware Act"). The rights, duties, status, and

liabilities of the Partners shall be as provided in the Delaware Act, except as otherwise expressly provided in this Agreement.

## Section 2.2 Name and Office

1. **Name:** The business of the Partnership shall be conducted under the name **[Insert Fund Name, e.g., Apex Venture Partners I, L.P.]** or such other name as the General Partner may select from time to time with prior written notice to the Limited Partners.
2. **Registered Office and Agent:** The registered office of the Partnership in the State of Delaware shall be located at [Insert Registered Agent Address, e.g., 1209 North Orange Street, Wilmington, New Castle County, Delaware 19801], and the registered agent for service of process at such address shall be [Insert Agent Name, e.g., The Corporation Trust Company], or such other office or agent as the General Partner may designate from time to time in accordance with the Delaware Act.
3. **Principal Place of Business:** The principal office of the Partnership shall be located at [Insert Principal Office Address, e.g., 500 Santana Row, San Jose, California 95128], or at such other place as the General Partner may determine from time to time.

## Section 2.3 Purpose and Scope

The primary purpose and objective of the Partnership is to seek long-term capital appreciation by identifying, making, holding, managing, and disposing of venture capital and equity-related investments in early-to-growth-stage technology companies (each a "Portfolio Company"), and to engage in such other activities necessary, incidental, or advisable in connection therewith.

## Section 2.4 Closings and Admission of Limited Partners

1. **Initial Closing:** The Partnership shall commence on the date the Certificate of Limited Partnership is filed with the Secretary of State of the State of Delaware. The first formal acceptance of Capital Commitments and execution of this Agreement shall constitute the **"Initial Closing Date."**
2. **Subsequent Closings:** The General Partner may, in its sole discretion, hold one or more subsequent closings (each a **"Subsequent Closing"**) at any time on or before the **Final Closing Date** to admit additional Limited Partners or to allow existing Limited Partners to increase their Capital Commitments.
3. **Final Closing:** The Final Closing Date shall occur no later than **twelve (12) months** following the Initial Closing Date. No additional Capital Commitments will be accepted by the Partnership after the Final Closing Date without the unanimous consent of the LPAC.
4. **Equalization (Retroactive Interest):** Any Limited Partner admitted to the Partnership, or increasing its Capital Commitment, at a Subsequent Closing shall be required to contribute to the Partnership its *pro-rata* share of all Capital Contributions called by the General Partner prior to such Subsequent Closing, plus an equalization payment calculated at an interest rate of **eight percent (8.0%) per annum** (or the Prime Rate plus 2%, whichever is higher) from the date such historical contributions were made to the date of the Subsequent Closing. Such equalization interest shall be distributed to the pre-existing

Limited Partners *pro-rata* and shall not reduce the newly admitted Partner's unfunded Capital Commitment.

## Section 2.5 Term of the Partnership

1. **Vong đời của Quỹ (Term):** The term of the Partnership shall commence on the Initial Closing Date and shall continue for a period of **ten (10) years** from the Final Closing Date, unless dissolved earlier or extended in accordance with the terms of this Agreement.
2. **Extensions:** The General Partner may extend the term of the Partnership for up to **two (2) additional consecutive periods of one (1) year each** for the orderly liquidation of the Portfolio Investments.
    - The first one-year extension requires the prior written consent of the **LPAC**.
    - The second one-year extension requires the affirmative vote or written consent of a **Supermajority Vote** of the Limited Partners.

## Section 2.6 Dissolution

The Partnership shall be dissolved and its affairs wound up upon the occurrence of any of the following events:

1. The expiration of its term as provided in Section 2.5;
2. The written determination of the General Partner, with the prior written consent of a Supermajority Vote of the Limited Partners, that the Partnership should be dissolved;
3. The Bankruptcy, insolvency, dissolution, withdrawal, or Removal for Cause of the General Partner, unless a replacement General Partner is appointed by a Supermajority Vote within ninety (90) days; or
4. The entry of a decree of judicial dissolution of the Partnership under Section 17-802 of the Delaware Act.

# ARTICLE III: CAPITAL CONTRIBUTIONS AND DEFAULT

## Section 3.1 Capital Commitments

Each Partner has agreed to contribute capital to the Partnership up to the total amount of its Capital Commitment as set forth opposite such Partner’s name on Schedule A. The General Partner shall make a Capital Commitment to the Partnership equal to at least one percent (1.0%) of the aggregate Capital Commitments of all Partners. No Partner shall be required to contribute capital to the Partnership in excess of its unfunded Capital Commitment.

## Section 3.2 Capital Calls and Drawdowns

1. **Drawdown Notices:** Capital shall be called by the General Partner from time to time on an as-needed basis to fund Portfolio Investments, pay Management Fees, or cover Partnership Expenses. The General Partner shall deliver a written notice of a capital call (a **"Capital Call Notice"**) to each Limited Partner at least **ten (10) Business Days** prior to the date on which such payment is due (the **"Due Date"**).
2. **Contents of Notice:** Each Capital Call Notice shall specify:
    - The aggregate amount of capital being called from all Partners;
    - The specific purpose of the capital call (e.g., funding a specific Portfolio Investment or paying expenses);
    - The *pro-rata* share of the capital contribution due from the recipient Limited Partner based on its Capital Commitment percentage;
    - The wire transfer instructions for the Partnership's bank account; and
    - The remaining unfunded Capital Commitment of such Limited Partner after giving effect to the called contribution.
3. **Pro-Rata Funding:** Except as otherwise provided in this Agreement (such as for equalization payments under Section 2.4), all capital called for Portfolio Investments or expenses shall be called from all Limited Partners *pro-rata* in proportion to their respective Capital Commitments.

## Section 3.3 Investment Period Restrictions

Following the expiration or termination of the Investment Period, the General Partner shall not issue any Capital Call Notices to fund new Portfolio Investments. However, the General Partner may continue to call capital from the Limited Partners' remaining unfunded Capital Commitments to:

1. Pay Management Fees, Partnership Expenses, and liabilities of the Partnership;
2. Complete Portfolio Investments that were legally committed to in writing prior to the expiration of the Investment Period; and
3. Fund follow-on investments in existing Portfolio Companies, provided that the aggregate amount of capital called for follow-on investments after the Investment Period does not exceed **fifteen percent (15.0%)** of the aggregate Capital Commitments of the Fund.

## Section 3.4 Defaulting Partners

1. **Declaration of Default:** If any Limited Partner fails to fund any portion of its required Capital Contribution on or before the Due Date specified in a Capital Call Notice, and such failure continues for a period of **ten (10) Business Days** after written notice of non-payment has been delivered by the General Partner, such Limited Partner shall be designated as a **"Defaulting Partner"** by the General Partner.
2. **Remedies for Default:** Upon declaring a Limited Partner to be a Defaulting Partner, the General Partner shall have the absolute right, in its sole discretion, to pursue any or all of the following remedies

on behalf of the Partnership:

- **Suspension of Rights:** Eliminate the Defaulting Partner's right to vote, grant consents, or participate in any partner meetings. The Capital Commitment of the Defaulting Partner shall be excluded from any voting thresholds or quorum calculations.
- **Forfeiture of Interest:** Cause the Defaulting Partner to forfeit up to **fifty percent (50.0%)** of its existing Capital Account balance and its entire right to receive future distributions from the Partnership. The forfeited amounts shall be reallocated *pro-rata* among the non-defaulting Limited Partners.
- **Forced Sale / Transfer:** Force the Defaulting Partner to sell and transfer its entire Partnership interest to a non-defaulting Limited Partner or a third-party purchaser approved by the GP at a purchase price equal to fifty percent (50.0%) of the lesser of: (i) the net asset value of such interest, or (ii) the total Capital Contributions made by the Defaulting Partner up to the date of default.
- **Acceleration of Liability:** Maintain a legal action against the Defaulting Partner to collect the unpaid amount, plus interest calculated at a rate of **twelve percent (12.0%) per annum** (or the maximum legal rate allowed by law, whichever is lower) from the Due Date until paid in full, along with all legal and collection costs incurred by the Partnership.

3. **GP Discretion:** The remedies set forth in this Section are cumulative and do not preclude the General Partner from pursuing any other legal or equitable remedies available under the Delaware Act or other applicable laws.

# ARTICLE IV: ALLOCATIONS AND DISTRIBUTIONS

## Section 4.1 Distribution of Distributable Cash

Except as otherwise provided in this Agreement (including Section 4.4 regarding tax distributions), the General Partner shall distribute all Distributable Cash at least annually, or more frequently at the sole discretion of the General Partner. All Distributable Cash derived from Portfolio Investments shall be allocated and distributed among the Partners in accordance with a **Whole-of-Fund Waterfall** structure, according to the following order of priority:

1. **First, Return of Capital (LP Return):** One hundred percent (100%) to all Limited Partners *pro-rata* in proportion to their respective Capital Contributions, until the cumulative distributions received by each Limited Partner under this clause equal the aggregate of all Capital Contributions made by such Limited Partner to the Partnership up to the date of distribution (including capital called for realized investments, unrealized write-downs, fees, and expenses).
2. **Second, Preferred Return (Hurdle Rate):** One hundred percent (100%) to all Limited Partners *pro-rata* in proportion to their respective Capital Contributions, until each Limited Partner has received a cumulative return equal to an **eight percent (8.0%) annual rate**, compounded annually, on all Capital Contributions made by such Limited Partner, calculated from the date each contribution was paid until the date it is repaid under step 1.

3. **Third, GP Catch-Up:** One hundred percent (100%) to the General Partner, until the cumulative distributions received by the General Partner under this clause equal **twenty percent (20.0%)** of the total cumulative distributions made to date under Section 4.1(2) and this Section 4.1(3).
4. **Fourth, 80/20 Split (Thặng dư):** Thereafter, all remaining Distributable Cash shall be distributed:
    - **Eighty percent (80.0%)** to the Limited Partners *pro-rata* based on their Capital Commitment percentages; and
    - **Twenty percent (20.0%)** to the General Partner as Carried Interest.

## Section 4.2 The Escrow Account

To secure the General Partner's potential obligations under Section 4.3 (GP Clawback), the General Partner shall establish a segregated, interest-bearing bank account in the name of the Partnership (the **"Escrow Account"**).

1. **Retention Rate:** The General Partner shall deposit **thirty percent (30.0%)** of all Carried Interest distributions otherwise payable to the General Partner under Sections 4.1(3) and 4.1(4) directly into the Escrow Account.
2. **Release of Funds:** Funds held in the Escrow Account shall remain in escrow until the final liquidation of the Partnership, provided that the General Partner may request a partial release of funds if a valuation confirmed by an independent auditor demonstrates that the assets remaining in the Escrow Account significantly exceed any maximum potential Clawback obligation.

## Section 4.3 General Partner Clawback

1. **Clawback Calculation:** Upon the dissolution, winding up, or final liquidation of the Partnership, the General Partner shall cause a final accounting of the Fund to be performed by the independent auditor. If the final accounting shows that either:
    - The General Partner has received cumulative Carried Interest distributions in excess of twenty percent (20.0%) of the total net profits of the Partnership; or
    - Any Limited Partner has failed to receive 100% of its total Capital Contributions plus its accrued eight percent (8.0%) Preferred Return; then the General Partner shall be legally obligated to pay to the Partnership the lesser of the two deficits (the **"Clawback Amount"**).
2. **Funding the Clawback:** The Clawback Amount shall be paid first out of the remaining funds available in the Escrow Account. To the extent that the Escrow Account is insufficient, the General Partner (and its members, on a joint and several basis) shall promptly contribute cash to the Partnership to satisfy the remaining balance of the Clawback Amount within thirty (30) days of the auditor's determination.

## Section 4.4 Tax Distributions

Notwithstanding the priority of distributions set forth in Section 4.1, if the tax liabilities of the General Partner or its members resulting from allocations of taxable income from the Partnership exceed the cash actual distributions received by the General Partner, the General Partner shall be entitled to cause the Partnership

to distribute cash to the General Partner to cover such tax liabilities (a **"Tax Distribution"**). Any Tax Distributions made pursuant to this Section shall be treated as an advance against, and shall reduce dollar-for-dollar, the subsequent distributions that the General Partner would otherwise be entitled to receive under Section 4.1.

## Section 4.5 Distributions in Kind

1. **Cash Preference:** Prior to the dissolution of the Partnership, all distributions shall be made exclusively in cash. The General Partner shall use commercially reasonable efforts to liquidate all Portfolio Investments for cash prior to distribution.
2. **Public Securities:** Following the dissolution of the Partnership, or in exceptional circumstances, the General Partner may distribute marketable, publicly traded securities *in kind*, provided that such securities are distributed *pro-rata* and are free of any legal or contractual transfer restrictions.
3. **Private Securities Restriction:** Under no circumstances shall the General Partner distribute unlisted or illiquid private securities *in kind* to the Limited Partners without the prior unanimous written consent of the **LPAC**.

# ARTICLE V: MANAGEMENT FEE AND EXPENSES

## Section 5.1 Management Fee

1. **Payment and Calculation During the Investment Period:** As compensation for its investment management, advisory, and administrative services provided to the Partnership, the Partnership shall pay to the Management Company an annual management fee (the **"Management Fee"**). During the Investment Period, the Management Fee shall be calculated at an annual rate equal to **two percent (2.0%)** of the aggregate Capital Commitments of all Partners.
2. **Payment and Calculation After the Investment Period:** Following the expiration or termination of the Investment Period, the Management Fee shall be reduced and shall be calculated at an annual rate equal to **one and one-half percent (1.5%)** of the *actively invested capital* of the Partnership. For purposes of this calculation, "actively invested capital" means the aggregate Capital Contributions made by all Partners to fund Portfolio Investments that have not been fully realized, written off, or sold for nominal consideration.
3. **Manner and Frequency of Payment:** The Management Fee shall be payable by the Partnership in advance in equal quarterly installments on the first Business Day of each calendar quarter (each, a **"Fee Payment Date"**). The Management Fee for any partial quarter shall be calculated on a *pro-rata* basis based upon the actual number of days elapsed in such quarter relative to a 365-day year. The General Partner is authorized to issue Capital Call Notices to the Limited Partners to fund the Management Fee in accordance with the terms of Article III.

## Section 5.2 Management Fee Offsets

1. **Fee Components Subject to Offset:** The Management Company, the General Partner, or any of their respective Affiliates may from time to time receive fees or other compensation from Portfolio Companies or prospective Portfolio Companies, including break-up fees, director's fees, transaction fees, advisory fees, underwriting fees, syndication fees, and monitoring fees (collectively, **"Portfolio Company Fees"**).
2. **Offset Mechanism:** To ensure that the economic benefits of such Portfolio Company Fees accrue to the Partnership, the aggregate Management Fee payable by the Partnership for any calendar quarter shall be reduced and offset by an amount equal to **one hundred percent (100%)** of all Portfolio Company Fees received by the Management Company, the General Partner, or any of their Affiliates during the immediately preceding calendar quarter.
3. **Carry-Forward of Excess Offsets:** If, in any given calendar quarter, the total amount of Portfolio Company Fees subject to offset exceeds the total Management Fee otherwise due for that quarter, the excess amount shall be carried forward as a credit and applied to reduce the Management Fee payable in subsequent calendar quarters until such excess credit is fully exhausted.

## Section 5.3 Organizational Expenses and Cap

1. **Definition of Organizational Expenses:** The Partnership shall bear all reasonable legal, accounting, printing, filing, and travel costs, as well as regulatory fees and other expenses incurred in connection with the formation of the Partnership, the General Partner, and the Management Company, the drafting of this Agreement, the preparation of marketing materials, and the solicitation and admission of Partners at the Initial Closing and any Subsequent Closings (collectively, **"Organizational Expenses"**).
2. **Organizational Expenses Cap:** Notwithstanding the foregoing, the maximum aggregate amount of Organizational Expenses that may be borne by the Partnership shall not exceed **one hundred thousand United States Dollars ($100,000)** (the **"Organizational Expenses Cap"**). Any and all Organizational Expenses incurred in excess of the Organizational Expenses Cap shall be borne solely and directly by the General Partner or the Management Company out of their own resources, without any right to reimbursement from the Partnership.

## Section 5.4 Partnership Expenses

The Partnership shall bear and pay all expenses incurred in its operations that are not explicitly designated as obligations of the General Partner or the Management Company under Section 5.5. These expenses (collectively, **"Partnership Expenses"**) shall include, but are not limited to, the following:

1. **Transaction Expenses:** All costs, fees, and expenses incurred in connection with the evaluation, sourcing, due diligence, negotiation, acquisition, structuring, holding, monitoring, and disposition of Portfolio Investments, including legal fees, accounting fees, appraisal costs, engineering fees, finder's fees, brokerage commissions, and travel expenses directly related to a specific prospective or actual investment opportunity.

2. **Broken-Deal Expenses:** All costs, fees, and expenses incurred in connection with prospective investment opportunities that are evaluated or negotiated but ultimately not consummated (collectively, **"Broken-Deal Expenses"**), including legal, technical, and accounting due diligence costs.
3. **Legal, Auditing, and Accounting Fees:** All costs and expenses associated with the preparation of the Partnership's annual audited financial statements, quarterly unaudited financial reports, federal, state, and local tax returns (including Schedule K-1s), and legal services rendered directly to the Partnership by outside independent legal counsel.
4. **LPAC and Governance Expenses:** All reasonable out-of-pocket costs and travel expenses incurred by members of the Limited Partners Advisory Committee (LPAC) in connection with attending meetings of the LPAC or performing their official governance duties on behalf of the Fund.
5. **Indemnification and Insurance:** All costs and expenses associated with indemnifying any Indemnified Person pursuant to the terms of this Agreement, including the premiums, deductibles, and maintenance costs of directors and officers (D&O) liability insurance, error and omissions (E&O) insurance, and LPAC liability insurance policies maintained by the Partnership.
6. **Taxes and Regulatory Fees:** All taxes, assessments, levies, and governmental charges imposed directly upon the Partnership or its assets, as well as all fees and filing costs required to maintain the legal standing of the Partnership and comply with applicable federal, state, regional, or international regulatory frameworks (including SEC filings, AML/KYC screening software costs, and local corporate registry fees).
7. **Liquidation and Dissolution Expenses:** All legal, accounting, wind-up, and administrative costs incurred in connection with the orderly liquidation, dissolution, and winding up of the affairs of the Partnership.

## Section 5.5 Expenses Borne by the General Partner

For the avoidance of doubt, the General Partner and the Management Company shall bear, out of their own resources (including the Management Fee), all internal, routine, and overhead expenses incurred in connection with managing and operating the Fund. The Partnership shall not reimburse the General Partner or the Management Company for any of the following expenses:

1. **Personnel and Salaries:** All compensation, salaries, bonuses, fringe benefits, payroll taxes, and healthcare costs of the partners, directors, officers, investment professionals, and administrative employees of the General Partner or the Management Company.
2. **Office Overhead:** All expenses associated with maintaining the principal office and any branch offices of the General Partner or the Management Company, including rent, utilities, office equipment, property insurance, communication lines, internet access, and routine office supplies.
3. **Internal Administrative Costs:** All internal bookkeeping, accounting, secretarial, and clerical costs incurred by the General Partner or the Management Company that do not constitute specialized third-party services rendered directly to the Fund.

# ARTICLE VI: INVESTMENT LIMITATIONS AND COVENANTS

## Section 6.1 Duration of the Investment Period

1. **Commencement and Expiration:** The period during which the General Partner is authorized to identify, negotiate, and deploy capital into new Portfolio Investments (the **"Investment Period"**) shall commence on the Initial Closing Date and shall automatically expire on the fifth (5th) anniversary of the Final Closing Date, unless terminated or suspended earlier pursuant to the terms of this Agreement.
2. **Early Termination or Suspension:** The Investment Period shall be automatically suspended upon the occurrence of a Key Person Event as provided in Article VIII. Furthermore, the Investment Period may be terminated or suspended at any time prior to its scheduled expiration date upon:
    - The written determination of the General Partner, with the prior written consent of the LPAC; or
    - The affirmative vote or written consent of a Supermajority Vote of the Limited Partners.

## Section 6.2 Post-Investment Period Operations

Following the expiration, suspension, or termination of the Investment Period, the General Partner shall immediately cease making any new Portfolio Investments on behalf of the Partnership. The General Partner's authority to call capital from the Limited Partners' remaining unfunded Capital Commitments shall be strictly limited to the operational and follow-on scenarios explicitly defined in Section 3.3 of this Agreement.

## Section 6.3 Portfolio Diversification Limits

To ensure appropriate risk mitigation through diversification, the Partnership shall adhere to the following investment concentration thresholds:

1. **Single Company Concentration Limit:** The Partnership shall not invest an aggregate amount exceeding **twenty percent (20.0%)** of the total Capital Commitments of all Partners in any single Portfolio Company, including all equity, debt, warrants, or guarantees issued to or on behalf of such Portfolio Company.
2. **Geographic and Sector Limits:** Unless otherwise approved in advance by a majority vote of the LPAC, the Partnership shall not deploy more than **thirty-five percent (35.0%)** of the aggregate Capital Commitments in Portfolio Companies that are headquartered or have their primary operational focus outside of [Insert Target Region, e.g., North America and Southeast Asia].
3. **LPAC Waiver:** Any breach or proposed variance from the diversification limits set forth in this Section 6.3 must be submitted to the LPAC in writing, and shall require the express, prior written waiver of a majority of the members of the LPAC.

## Section 6.4 Negative Covenants and Investment Prohibitions

The General Partner shall not cause the Partnership, directly or indirectly, to engage in any of the following investment activities or asset classes:

1. **Prohibited Industries:** The Partnership shall not invest in any entity whose primary business activity involves the manufacture or sale of weapons of war, firearms, ammunition, tobacco products, commercial gambling, adult entertainment, or cannabis products.
2. **Public Securities:** The Partnership shall not invest in publicly traded securities or listed equities, provided that this restriction shall not prohibit the Partnership from holding public securities acquired through the initial public offering (IPO), merger, or acquisition of a Portfolio Company previously held as a private investment.
3. **Leverage and Borrowing:** The Partnership shall not borrow money, issue debt instruments, or guarantee the obligations of third parties, except that the General Partner may utilize a temporary credit facility or subscription line of credit to bridge capital calls for a period not exceeding **ninety (90) days**, provided that the total debt drawn under such facility does not exceed twenty percent (20.0%) of the aggregate Capital Commitments.
4. **Derivatives and Commodities:** The Partnership shall not invest in commodities, real estate, physical infrastructure, cryptocurrency tokens (unless acquired as equity warrants or conversion rights in a standard tech startup financing round), or speculative derivative instruments such as options, futures, or swaps.
5. **Fund-of-Funds:** The Partnership shall not invest in or allocate capital to other venture capital, private equity, or hedge funds.

## Section 6.5 Temporary Investments

Pending the deployment of called capital into Portfolio Investments, or pending the distribution of proceeds from realized investments to the Partners, the General Partner is authorized to invest temporary cash balances exclusively in high-liquidity, low-risk instruments. Authorized **"Temporary Investments"** are strictly limited to:

1. Direct obligations of, or obligations fully guaranteed by, the United States federal government (e.g., Treasury Bills);
2. Open-ended money market mutual funds that invest exclusively in government debt; and
3. Interest-bearing bank deposits or certificates of deposit (CDs) maintained with top-tier international financial institutions possessing an investment-grade rating of at least A- or its equivalent.

# ARTICLE VII: GOVERNANCE AND LPAC PROVISIONS

## Section 7.1 Establishment and Composition of the LPAC

1. **Establishment:** The General Partner shall establish a Limited Partners Advisory Committee (the **"LPAC"**) as soon as practicable following the Initial Closing Date, but no later than thirty (30) days following the Final Closing Date.
2. **Composition:** The LPAC shall consist of at least **three (3)** and no more than **five (5)** representatives selected by the General Partner from among the largest, non-affiliated Limited Partners of the Fund. Each member of the LPAC shall designate one natural person to serve as its primary representative on the committee.
3. **Resignation and Removal:** Any LPAC member may resign at any time by giving ten (10) Business Days' prior written notice to the General Partner. A member shall automatically be removed from the LPAC if it becomes a Defaulting Partner under Article III or if it ceases to hold an active Capital Commitment in the Partnership. The General Partner may fill any vacancy on the LPAC by appointing another qualified, non-affiliated Limited Partner.

## Section 7.2 Meetings and Procedures

1. **Frequency of Meetings:** The LPAC shall meet at least annually, or more frequently as requested by the General Partner or by a majority of the members of the LPAC. Meetings may be conducted in person, via video conference, or by telephone.
2. **Quorum and Voting:** The presence of a majority of the designated members of the LPAC shall constitute a quorum for the transaction of business. Each member of the LPAC shall have one (1) vote. Except as otherwise explicitly required by this Agreement, actions, resolutions, or waivers passed by the LPAC shall require the affirmative vote of a majority of the members present at a meeting where a quorum is established.
3. **In Camera Sessions:** The members of the LPAC shall have the absolute right to meet **in camera** (privately) at any time during a scheduled meeting without the presence of the General Partner, the Management Company, or any of their respective representatives or Affiliates.
4. **Action by Written Consent:** Any action required or permitted to be taken at a meeting of the LPAC may be taken without a meeting if all members of the LPAC consent thereto in writing (including via electronic mail).

## Section 7.3 Authority and Duties of the LPAC

The LPAC shall not participate in the management, day-to-day operations, or investment selection of the Partnership, and its activities shall be purely advisory and supervisory in nature. The authority of the LPAC is strictly limited to the following matters:

1. **Conflict of Interest Approvals:** The LPAC shall review, evaluate, and either approve or disapprove any potential or actual conflicts of interest involving the Partnership, the General Partner, the Management Company, or their Affiliates. This includes, but is not limited to, cross-investments, transactions with affiliated entities (Affiliate Transactions), or the allocation of investment opportunities among parallel funds.
2. **Valuation Methodology Review:** The LPAC shall review and validate the valuation methodologies applied by the General Partner to the Fund's unrealized Portfolio Investments, ensuring consistency with International Private Equity and Venture Capital (IPEV) valuation guidelines.
3. **Investment Limit Waivers:** The LPAC shall have the authority to grant or deny waivers regarding the portfolio diversification limits and geographic concentration limits explicitly set forth in Section 6.3.
4. **Extension of the Fund Term:** The LPAC shall review and provide or withhold its written consent for the first one-year extension of the term of the Partnership as specified in Section 2.5.

## Section 7.4 Affiliate Transactions

The Partnership shall not enter into any transaction, agreement, or contract with the General Partner, the Management Company, any Limited Partner, or any of their respective Affiliates, directors, officers, or employees unless:

1. The terms of the transaction are fair, reasonable, and no less favorable to the Partnership than those that could be obtained in an arm's-length transaction with an independent, non-affiliated third party; and
2. The General Partner fully discloses the material facts of the proposed transaction and conflict of interest to the LPAC in writing, and the LPAC explicitly approves the transaction by a majority vote prior to its execution.

## Section 7.5 LPAC Protections and Expenses

1. **Fund Expenses for Experts:** The LPAC shall have the authority, upon reasonable prior notice to the General Partner, to retain independent legal, financial, or technical advisers at the expense of the Partnership to assist the committee in evaluating complex conflicts of interest, valuations, or structural decisions, provided that such expenses do not exceed twenty-five thousand United States Dollars ($25,000) per instance without GP consent.
2. **Indemnification and Insurance:** To the maximum extent permitted by the Delaware Act, no member of the LPAC or its designated representative shall be liable to the Partnership, the General Partner, or any Limited Partner for any actions taken or omitted in good faith in their capacity as a committee member. The Partnership shall indemnify and hold harmless each LPAC member from any liability, loss, or expense incurred in connection with their service, and shall maintain appropriate **LPAC liability insurance** coverage as a standard Partnership Expense under Section 5.4.
3. **No Fiduciary Duty to Other LPs:** The Partners explicitly acknowledge and agree that the members of the LPAC are representatives of their respective institutions, do not owe any fiduciary duties to the Partnership, the General Partner, or the other Limited Partners, and shall not be held liable for voting or failing to vote in a particular manner.

# ARTICLE VIII: KEY PERSON AND GP REMOVAL PROVISIONS

## Section 8.1 Key Person Event

1. **Time Commitment and Continuity:** The General Partner covenants and agrees that **[Insert Name 1, e.g., John Doe]** and **[Insert Name 2, e.g., Jane Smith]** (each, a **"Key Person"** and collectively, the **"Key Persons"**) shall devote substantially all of their business time, attention, and energy to the affairs of the Partnership, the Management Company, and any parallel or successor venture capital funds authorized under this Agreement.
2. **Trigger of Key Person Event:** A **"Key Person Event"** shall be deemed to occur if at any time during the Investment Period, fewer than **two (2)** of the designated Key Persons continue to actively participate, devote substantially all of their business time, or remain capable of performing their executive duties on behalf of the General Partner and the Management Company due to death, disability, resignation, expulsion, retirement, or any other permanent cessation of business activity.
3. **Automatic Suspension of Investment Period:** The General Partner shall provide prompt written notice to all Limited Partners within five (5) Business Days following the occurrence of a Key Person Event. Upon the occurrence of such event, the Investment Period shall **automatically be suspended** for a period of up to **ninety (90) days** (the **"Suspension Period"**). During the Suspension Period, the General Partner shall not call capital from the Limited Partners to fund any new Portfolio Investments, except for investments legally committed to in writing prior to the Key Person Event.
4. **Reinstatement or Permanent Termination:** During the Suspension Period, the General Partner may propose a remediation plan, including the appointment of a qualified replacement Key Person.
    - The Investment Period shall only be reinstated upon the prior written approval of a majority of the members of the **LPAC** or a majority vote of the Limited Partners.
    - If no replacement plan is approved before the expiration of the 90-day Suspension Period, the Investment Period shall **automatically and permanently terminate**, and the Fund shall transition into its orderly liquidation phase.

## Section 8.2 Removal of the General Partner for Cause

1. **Triggers for Cause:** The Limited Partners shall have the right to remove the General Partner for cause (a **"Removal for Cause"**) at any time upon the occurrence of any of the following events:
    - A final, non-appealable judicial determination by a court of competent jurisdiction that the General Partner, the Management Company, or any Key Person has committed fraud, willful misconduct, gross negligence, or a criminal act involving dishonesty or a felony;
    - A material breach of this Agreement by the General Partner that has a material adverse effect on the Partnership and remains uncured for thirty (30) days after written notice thereof; or
    - The Bankruptcy or insolvency of the General Partner or the Management Company.

2. **Voting Threshold:** A Removal for Cause shall require the affirmative vote or written consent of Limited Partners holding **more than fifty percent (50.0%)** of the aggregate Capital Commitments held by all non-defaulting, non-affiliated Limited Partners.
3. **Economic Penalty:** Upon a valid Removal for Cause, the Carried Interest allocations and distributions otherwise payable to the removed General Partner under Article IV shall **automatically be reduced by one hundred percent (100%)** for all subsequent distributions. The removed General Partner shall immediately forfeit its entire right to receive future Carried Interest, which shall be reallocated to the successor General Partner or distributed *pro-rata* to the Limited Partners.

## Section 8.3 No-Fault Removal of the General Partner

1. **Mechanism:** The Limited Partners shall have the absolute right to remove the General Partner without the need to prove or demonstrate any fault, misconduct, or breach of contract (a **"No-Fault Removal"**).
2. **Voting Threshold:** A No-Fault Removal may only be triggered upon the affirmative vote or written consent of a **Supermajority Vote** of the Limited Partners (requiring at least **seventy-five percent (75.0%)** of the total Capital Commitments held by all non-defaulting, non-affiliated Limited Partners).
3. **Economic Adjustments (Haircut):** Upon the execution of a No-Fault Removal:
    - The Management Fee payable to the removed General Partner shall immediately cease on the effective date of removal, without any acceleration or additional payment obligations;
    - The Carried Interest earned by the removed General Partner up to the date of removal shall be subject to a **twenty percent (20.0%) haircut (reduction)**. The remaining eighty percent (80.0%) of its historical accrued Carried Interest shall be calculated based on an independent audit of the Fund's Net Asset Value (NAV) at the date of removal and shall be converted into a passive, non-voting liquidating interest, payable only when the underlying Portfolio Investments are actually realized by the Fund.

## Section 8.4 Consequences of Removal and Successor GP

1. **Transfer of Control:** Upon the effective date of any removal under Section 8.2 or Section 8.3, the removed General Partner shall immediately cease to have any management control, rights, or discretion over the operations, bank accounts, books, records, and assets of the Partnership.
2. **Appointment of Successor:** The Limited Partners may, within ninety (90) days following the removal date, appoint a successor General Partner by a Supermajority Vote to assume the management of the Fund and continue its business affairs. If no successor is appointed within ninety (90) days, the Partnership shall automatically dissolve and be wound up in accordance with Article XII.

# ARTICLE IX: CO-INVESTMENTS

## Section 9.1 Co-Investment Opportunities

1. **General Principle:** If the General Partner identifies a prospective Portfolio Investment that requires an aggregate amount of capital exceeding the maximum single company concentration limit set forth in

Section 6.3, or if the General Partner otherwise determines that it is in the best interest of the Partnership to obtain additional co-investment capital, the General Partner may offer such co-investment opportunity to the Limited Partners or to third-party investors (each, a **"Co-Investor"**).

2. **Right of First Offer to Existing LPs:** The General Partner covenants and agrees that it shall first offer any such co-investment opportunity to the existing, non-defaulting Limited Partners *pro-rata* in proportion to their respective Capital Commitments, before offering such opportunity to any third-party investor or strategic partner.
3. **Discretion to Allocate:** If the Limited Partners do not fully subscribe to the offered co-investment opportunity within ten (10) Business Days following the delivery of the written co-investment notice, the General Partner shall have the absolute right to allocate the remaining, unsubscribed portion of the co-investment opportunity to any third-party investor or to its own Affiliates, provided that the terms offered to such third parties are no more favorable than those offered to the Limited Partners.

## Section 9.2 Structure of Co-Investments

1. **Co-Investment Vehicles:** The General Partner may structure a co-investment either:
    - Directly, by allowing the Co-Investor to co-invest alongside the Partnership as a direct shareholder in the target Portfolio Company; or
    - Indirectly, by establishing a dedicated co-investment special purpose vehicle or limited partnership (a **"Co-Investment Vehicle"**) managed by the General Partner or the Management Company.

2. **No-Fee/No-Carry Principle for LPs:** Unless explicitly disclosed otherwise in the initial marketing materials of the Fund or approved by the LPAC, any co-investment opportunity allocated to an existing Limited Partner shall be offered on a **"no-fee, no-carry"** basis (meaning such Limited Partner shall not be charged an additional management fee or carried interest by the GP or Management Company with respect to its co-investment capital). Third-party Co-Investors may be charged fees and carried interest at the sole discretion of the General Partner.

## Section 9.3 Allocation of Expenses and Liabilities

To ensure structural fairness and protect the main Fund from bearing disproportionate financial burdens, all costs and liabilities associated with co-investments shall be allocated as follows:

1. **Consummated Investments:** All transaction costs, due diligence fees, legal expenses, and other expenses incurred in connection with a successful, completed investment that includes a co-investment tranche shall be allocated **pro-rata** between the Partnership and the Co-Investment Vehicle (or direct Co-Investors) in strict proportion to their respective financial participations in the total investment amount.
2. **Broken-Deal Expenses:** If a proposed investment opportunity that involves a designated co-investment tranche is ultimately aborted or fails to close, all associated Broken-Deal Expenses shall be allocated *pro-rata* between the Partnership and the prospective Co-Investors based on the initially proposed capital allocation percentages, provided that the prospective Co-Investors have executed a formal co-investment expression of interest or term sheet.

3. **Ongoing Liabilities:** Any post-investment liabilities, indemnification obligations, or litigation costs arising from a Portfolio Company in which a co-investment was made shall be borne *pro-rata* by the Partnership and the Co-Investors in accordance with their respective ownership percentages in such Portfolio Company.

## Section 9.4 Reporting and Transparency

The General Partner shall maintain complete and separate books and records for each Co-Investment Vehicle. Within forty-five (45) days following the end of each calendar quarter, the General Partner shall provide the LPAC and all Limited Partners with a detailed report summarizing all active co-investment allocations, the identity of the Co-Investors, the financial terms achieved, and the precise allocation of transaction expenses.

# ARTICLE X: BOOKS, RECORDS AND REPORTING

## Section 10.1 Maintenance of Books and Records

1. **Books of Account:** The General Partner, at the expense of the Partnership, shall maintain or cause to be maintained complete, accurate, and separate books of account and financial records for the Partnership.
2. **Location and Access:** All such books and records, together with an executed copy of this Agreement, the Certificate of Limited Partnership, and all amendments thereto, shall be kept at the principal place of business of the Partnership or at a secure location designated by the General Partner. Every Limited Partner (or its authorized legal representative) shall have the right, upon five (5) Business Days' prior written notice and for any purpose reasonably related to its interest as a partner, to inspect and copy such records during normal business hours.
3. **Accounting Method:** The books and financial records of the Partnership shall be kept and maintained in accordance with United States Generally Accepted Accounting Principles (**"US GAAP"**) or International Financial Reporting Standards (**"IFRS"**), consistently applied.

## Section 10.2 Financial Reporting and Deadlines

The General Partner shall prepare and deliver the following financial reports to each Limited Partner:

1. **Quarterly Reports:** Within **forty-five (45) days** following the end of each of the first three calendar quarters of each Fiscal Year, an un-audited financial report of the Partnership. This report shall include a balance sheet, a statement of operations, a summary of Capital Contributions and distributions, and an update on the operational performance and fair valuation of each Portfolio Company.
2. **Annual Audited Reports:** Within **ninety (90) days** following the end of each Fiscal Year, an audited financial report of the Partnership. This report shall include a balance sheet, statements of operations, partners' capital accounts, and cash flows, and shall be accompanied by an independent report and

opinion prepared by a certified public accounting firm of international standing (e.g., a "Big 4" accounting firm) selected by the General Partner.

3. **Standardization:** To ensure institutional-grade transparency and cost control, all financial reporting, management fee computations, and expense disclosures provided under this Section shall substantially comply with the standardized **ILPA Reporting Templates** and guidelines.

## Section 10.3 Capital Account Statements

Concurrently with the delivery of the quarterly and annual financial reports, the General Partner shall provide each Limited Partner with an individualized Capital Account statement. This statement shall explicitly detail:

1. The Limited Partner's cumulative Capital Commitments and unfunded Capital Commitments;
2. Total Capital Contributions made and distributions received by such Limited Partner during the reporting period and on a cumulative basis;
3. The net asset value (**"NAV"**) of the Limited Partner's remaining partnership interest; and
4. The precise breakdown of Management Fees and Partnership Expenses allocated to such Limited Partner during the period.

## Section 10.4 Tax Reporting and Schedule K-1s

1. **Tax Return Preparation:** The General Partner, at the expense of the Partnership, shall cause all necessary federal, state, local, and foreign tax returns for the Partnership to be prepared and filed by a qualified independent tax professional in a timely manner.
2. **Schedule K-1 Deadline:** The General Partner covenants and agrees to deliver to each Limited Partner its individualized **Schedule K-1** (Form 1065) or any equivalent local tax reporting schedule within **ninety (90) days** following the end of each Fiscal Year. If the General Partner is unable to meet this deadline due to delays from underlying Portfolio Companies, it shall provide prompt written notice and an estimated delivery timeline to all LPs, which shall in no event exceed one hundred and eighty (180) days following the end of the Fiscal Year.

## Section 10.5 Partnership Valuation Guidelines

The General Partner shall determine the fair value of the Partnership’s Portfolio Investments on a quarterly basis. All valuations shall be conducted in good faith in accordance with US GAAP/IFRS and shall substantially align with the principles set forth in the **International Private Equity and Venture Capital (IPEV) Valuation Guidelines**. The General Partner shall present the valuation methodologies and any material write-downs or write-ups to the **LPAC** for review during the annual LPAC meeting, or immediately upon a material valuation adjustment exceeding ten percent (10.0%) of the Fund's aggregate NAV.

# ARTICLE XI: TRANSFER OF INTERESTS

## Section 11.1 Restrictions on Transfer

1. **General Prohibition:** No Limited Partner shall sell, assign, pledge, hypothecate, gift, or otherwise transfer, encumber, or dispose of (each, a **"Transfer"**) all or any portion of its partnership interest, economic rights, or obligations under this Agreement to any Person without the prior written consent of the General Partner. The General Partner may grant or withhold such consent in its sole and absolute discretion.
2. **Void Transfers:** Any attempted Transfer of a partnership interest in violation of the provisions of this Article XI shall be deemed null, void *ab initio*, and of no legal force or effect. The Partnership shall not recognize any such transferee as a partner for any purpose and shall suspend all distributions and voting rights associated with the improperly transferred interest.

## Section 11.2 Conditions to Consent

The General Partner shall not grant its written consent to any proposed Transfer unless the transferring Limited Partner and the prospective transferee satisfy all of the following conditions:

1. **Legal and Tax Opinions:** The transferring Limited Partner provides the General Partner with a legal opinion, issued by counsel reasonably acceptable to the GP, stating that the Transfer will not violate applicable federal, state, or international securities laws, and will not cause the Partnership to be treated as a "publicly traded partnership" taxable as a corporation under Section 7704 of the Code.
2. **AML/KYC Compliance:** The prospective transferee completes and passes all standard Anti-Money Laundering (AML), Know-Your-Customer (KYC), and sanctions screening protocols required by the Partnership's regulatory jurisdiction.
3. **Assumption of Obligations:** The prospective transferee executes a formal joinder agreement and all necessary subscription documents, explicitly assuming all legal, financial, and funding obligations of the transferring Limited Partner, including the liability for all unfunded Capital Commitments.
4. **Transfer Expenses:** The transferring Limited Partner or the transferee pays all reasonable legal, administrative, and processing fees incurred by the Partnership, the General Partner, and the Management Company in connection with evaluating and executing the Transfer.

## Section 11.3 Right of First Refusal (ROFR)

1. **Notice of Offer:** If a Limited Partner receives a bona fide, written offer from a third party to purchase its partnership interest (the **"Transfer Interest"**), and the General Partner indicates a preliminary willingness to consent to such Transfer, the transferring Limited Partner must deliver a written notice (the **"Transfer Notice"**) to the General Partner and all non-defaulting Limited Partners. The Transfer Notice must explicitly state the identity of the offeror, the percentage of interest to be sold, the cash purchase price, and all material terms of the offer.

2. **Exercise of Right:** The non-defaulting Limited Partners shall have the right, exercisable within **twenty (20) Business Days** following the delivery of the Transfer Notice, to purchase their *pro-rata* share of the Transfer Interest at the exact cash price and upon the same terms specified in the Transfer Notice. If any Limited Partner elects not to purchase its full *pro-rata* share, the remaining non-defaulting Limited Partners shall have a right of over-allotment to purchase the unsubscribed portion.
3. **Permitted Third-Party Sale:** If the existing Limited Partners do not elect to purchase the entire Transfer Interest within the 20-Business-Day period, the transferring Limited Partner may proceed to sell the remaining interest to the third-party offeror named in the Transfer Notice, subject to the final written consent of the General Partner and the fulfillment of all conditions set forth in Section 11.2.

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# ARTICLE XII: DISSOLUTION AND WINDING-UP

## Section 12.1 Events of Dissolution

The Partnership shall be dissolved and its affairs shall be wound up exclusively upon the occurrence of any of the following events:

1. The expiration of the Fund's 10-year term plus any authorized extensions explicitly approved under Section 2.5;
2. The written determination of the General Partner, with the prior written consent of a **Supermajority Vote** of the Limited Partners, that the Fund should be dissolved early;
3. The Bankruptcy, insolvency, dissolution, or Removal for Cause of the General Partner, unless a replacement General Partner is appointed by a Supermajority Vote within ninety (90) days of such event to continue the business of the Fund; or
4. The entry of a decree of judicial dissolution of the Partnership under Section 17-802 of the Delaware Act.

## Section 12.2 Winding-Up and Liquidation

1. **Liquidating Trustee:** Upon the dissolution of the Partnership, the General Partner shall act as the **"Liquidating Trustee"** to oversee the orderly winding up of the Fund's affairs. However, if the dissolution is triggered by the Bankruptcy, insolvency, or Removal for Cause of the General Partner, the LPAC shall appoint an independent third party or a qualified liquidator to serve as the Liquidating Trustee.
2. **Orderly Realization:** The Liquidating Trustee shall use all commercially reasonable efforts to liquidate the remaining Portfolio Investments for cash in an orderly manner, avoiding fire sales that could materially harm the residual value of the assets. The Liquidating Trustee shall be authorized to continue calling remaining unfunded Capital Commitments solely to pay liquidation expenses and satisfy existing Fund liabilities.

## Section 12.3 Liquidating Distributions

The proceeds derived from the liquidation of the Partnership's assets, together with any remaining cash balances, shall be distributed by the Liquidating Trustee in the following strict order of priority:

1. **First, Payment of Creditors:** To pay all debts, liabilities, and obligations of the Partnership owed to external creditors (including banks, lenders, and service providers) and to pay the reasonable expenses associated with the winding-up process;
2. **Second, Reserves for Contingencies:** To establish any cash reserves that the Liquidating Trustee reasonably deems necessary to cover contingent, un-liquidated, or anticipated legal liabilities and tax obligations of the Partnership; and
3. **Third, Final Waterfall Distribution:** Thereafter, all remaining cash and assets shall be distributed to the Partners in strict accordance with the **Whole-of-Fund Waterfall** provisions set forth in Section 4.1, after taking into account the final **GP Clawback** adjustments required under Section 4.3.

## Section 12.4 Cancellation of Certificate

Upon the completion of the distribution of all liquidation proceeds and the final winding up of the Partnership's affairs, the Liquidating Trustee shall promptly execute and file a Certificate of Cancellation with the Secretary of State of the State of Delaware, whereupon the legal existence of the Partnership shall formally terminate.